

**CHAPTER cxxvii.**

An Act to confirm a Provisional Order under the Inclosure Acts 1845 to 1899 relating to Oxshott Heath in the Parish of Cobham in the County of Surrey. A.D. 1904.

[22nd July 1904.]

WHEREAS the Board of Agriculture and Fisheries did in pursuance of the Inclosure Acts 1845 to 1899 issue in the year nineteen hundred and three the Provisional Order of Regulation set forth in the schedule hereto and in a special report certified that it was expedient that the same should be confirmed by Parliament: 8 & 9 Vict.
c. 118 &c.

And whereas a Committee of the House of Commons to which the same Provisional Order was referred recommended that the same should be confirmed without modification:

And whereas the said regulation cannot be proceeded with without the previous authority of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order of Regulation set forth in the schedule to this Act is hereby confirmed. Order in
schedule
confirmed.

2. This Act may be cited as the Commons Regulation (Oxshott) Provisional Order Act 1904. Short title.

A.D. 1904.

SCHEDULE.

PROVISIONAL ORDER FOR THE REGULATION OF OXSHOTT HEATH.

WHEREAS persons interested in certain lands called or known as Oxshott Heath (hereinafter referred to as "the said Common") situate in the parish of Cobham in the county of Surrey such lands being a Common within the meaning of the Inclosure Acts 1845 to 1899 made application to the Board of Agriculture to issue a Provisional Order for the regulation of the said Common and to certify that it is expedient that such Provisional Order should be confirmed by Parliament :

And whereas it was made to appear to the said Board that the persons making the said application represent at least one-third in value of such interests in the said Common as are proposed to be affected by the Provisional Order :

And whereas the said Board having taken the said application into consideration were satisfied that a *prima facie* case had been made out and that regard being had to the benefit of the neighbourhood as well as to private interests it was expedient to proceed further in the matter and accordingly ordered a local inquiry to be held by an officer of the Board :

And whereas the said officer duly held the local inquiry in accordance with the rules prescribed by the said Acts :

And whereas the provisions of the said Acts have been in all other respects complied with :

And whereas the Board of Agriculture and Fisheries have prepared and sealed a map showing the reputed boundaries of the said Common :

And whereas the said Common is waste land of the Manor of Milbourne and Her Royal Highness Helen Duchess of Albany the lady of the said manor claims as such to be entitled to the soil of the said Common and to the mines and minerals thereunder but assents to such restriction of her right of digging sand as is hereinafter provided :

Now therefore the Board of Agriculture and Fisheries being satisfied that regard being had to the benefit of the neighbourhood as well as to private interests it is expedient to proceed further in the matter do by virtue of the powers in this behalf given to them by the Inclosure Acts 1845 to 1899 and

the Board of Agriculture and Fisheries Acts 1889 and 1903 make this their A.D. 1904.
Provisional Order as follows (that is to say) :—

I. For the improvement of the said Common the following provisions shall be put in force :— Improve-
ment.

There shall be nine Conservators of the said Common to be appointed as follows (that is to say) one by the lord or lady of the manor one by the Commissioners of Woods and Forests two by the Parish Council of Cobham and five by such persons residing within a radius of $1\frac{1}{2}$ miles from the point marked * on the said map as during the previous year shall have paid towards the expenses of this Order or of the regulation of the said Common a sum of at least ten shillings or such other sum not exceeding ten shillings as the Conservators shall from time to time determine. Conservators

The Conservators shall have power to—

- (a) drain manure and level the said Common; and
- (b) plant trees on the said Common or in any other way improve or add to the beauty of the said Common; and
- (c) make byelaws and regulations for the prevention of or protection from nuisances or for keeping order on the said Common including the regulation of the exercise of lawful rights of common subsisting thereon such byelaws and regulations being subject to any such confirmation as is by law required; and
- (d) generally manage the said Common.

II. For the benefit of the neighbourhood—

- (a) There shall be reserved a right of free access to the said Common and a privilege of enjoying recreation thereon and of playing games on such parts of the said Common as may be appointed by the Conservators for the purpose at such times and in such manner as may from time to time be prescribed by any byelaws and regulations to be made by the Conservators and confirmed as by law required and the Conservators may cause any part or parts for the time being appointed for the playing of games as aforesaid to be temporarily inclosed with posts and chains or other open fences;
- (b) The Conservators shall have power to appropriate for the purpose of widening Steer Lane such part of the said Common as they think fit and to set out make and maintain new carriage roads bridlepaths and footpaths over the said Common.

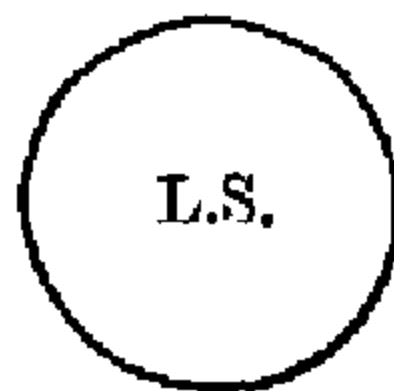
Provisions
for the
benefit of the
neighbour-
hood.

III. This Provisional Order is to be without prejudice to the rights of the lord or lady of the manor in the soil of the said Common and in the mines and minerals thereunder and all such rights may be exercised in the same manner and to the same extent as if this Provisional Order had not been made Provided that the lord or lady of the manor shall not extend the area of the existing sand pit on the said Common or open any new sand pit thereon without the consent of the Conservators. Reservation
of rights of
lord of the
manor.

A.D. 1904.
Award.

IV. For the purpose of giving complete effect to this Provisional Order there shall be inserted in the award to be made in pursuance of the Inclosure Acts 1845 to 1899 such provisions not inconsistent with those Acts as the Board of Agriculture and Fisheries shall think desirable and proper.

In witness whereof the Board of Agriculture and Fisheries have hereunto set their official seal this Sixth day of October One thousand nine hundred and three.



(Signed) T. H. ELLIOTT
Secretary.

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